1. *Double Membership:* A person cannot be a member of both Houses of state legislature at one and the same time. If a person is elected to both the Houses, his/her seat in one of the Houses falls vacant as per the provisions of a law made by the state legislature.

2. *Disqualification:* If a member of the state legislature becomes subject to any of the disqualifications, his/her seat becomes vacant.

3. *Resignation:* A member may resign from his/her seat by writing to the Chairman of legislative council or Speaker of legislative assembly, as the case may be. The seat falls vacant when the resignation is accepted[7].

4. *Absence:* A House of the state legislature can declare the seat of a member vacant if he/she absents himself/herself from all its meeting for a period of sixty days without its permission.

5. *Other Cases:* A member has to vacate his/her seat in the either House of state legislature,

    1. if his/her election is declared void by the court,

    2. if he/she is expelled by the House,

    3. if he/she is elected to the office of president or office of vice-president, and

    4. if he/she is appointed to the office of governor of a state.

PRESIDING OFFICERS OF STATE LEGISLATURE

Each House of state legislature has its own presiding officer. There is a Speaker and a Deputy Speaker for the legislative assembly and a Chairman and a Deputy Chairman for the legislative council. A panel of chairman for the assembly and a panel of vice-chairman for the council is also appointed.

The salaries and allowances of the Speaker and the Deputy Speaker of the assembly and the Chairman and the Deputy Chairman of the council are fixed by the state legislature. They are charged on the Consolidated Fund of the State and thus are not subject to the annual vote of the state legislature.

 **Speaker of Assembly**

The Speaker is elected by the assembly itself from amongst its members.

Usually, the Speaker remains in office during the life of the assembly. However, he/she vacates his/her office earlier in any of the following three cases:

1. if he/she ceases to be a member of the assembly;

2. if he/she resigns by writing to the deputy speaker; and

3. if he/she is removed by a resolution passed by a majority of all the then members of the assembly (i.e., an effective majority). Such a resolution can be moved only after giving 14 days advance notice.

The Speaker has the following powers and duties: